

5	Milton vs. Mercedes-Benz USA, LLC 2025-01514755	Motion to Enforce Settlement The Court grants Plaintiffs Randy Milton and Karen Milton’s Motion to enter judgment against Defendant Mercedes-Benz USA LLC pursuant to the parties CCP §998 Agreement. <u>Legal Standard</u> Where the statutory requirements are met, the court may, upon motion, enter judgment pursuant to the terms of a settlement agreement. (CCP §664.6). The statutory procedure under § 664.6 provides an efficient alternative to resolution of disputes arising over settlement agreements. The court is empowered to enter judgment where parties to pending litigation stipulate to a settlement either: — orally before the court; or — in a writing signed by the parties or their counsel outside court. [CCP § 664.6(a), (b) (amended eff. 1/1/21)] The stipulation must conform to the same requirements necessary for enforcement of the settlement agreement; i.e., it must be made: — <i>during</i> pendency of the case (not after the case has been dismissed in its entirety); — if oral, by the parties themselves (not an agent); — if in writing, by the parties or their counsel; or if a party is an insurer, by an agent who is authorized in writing by the insurer to sign on the insurer's behalf. [CCP § 664.6(a), (b) (amended eff. 1/1/21).] Disputes regarding the terms of the settlement (or other disputed facts) may be adjudicated on a CCP § 664.6 motion, on the basis of declarations or other evidence. (<i>Malouf Brothers v. Dixon</i> (1991) 230 Cal.App.3d 280, 284; <i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 795-796,—court may resolve reasonable disputes over terms of settlement agreement but may not modify terms from what was agreed to by parties.) In ruling on a motion under CCP § 664.6, the trial judge may receive oral testimony, or may determine the motion upon declarations alone. (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994.)
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On the other hand, “nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 CA4th 974, 984; *City of West Hollywood v. Kihagi* (2017) 16 CA5th 739, 755-756 (J. Rothschild, concur. & dissent. opn.) (citing text); *Machado v. Myers* (2019) 39 CA5th 779, 790; *BTHHM Berkeley, LLC v. Johnston* (2024) 100 CA5th 1220, 1225-1226—Civ. C. § 3287 did not authorize award of prejudgment interest on judgment entered pursuant to CCP § 664.6 where parties reached their own agreement about what compensation would be owed for damages that would otherwise be addressed by prejudgment interest.)

Merits

Defendant Mercedes-Benz USA, LLC accepted Plaintiffs Randy Milton and Karen Milton 998 Offer to Compromise on February 5, 2026. (Decl. Rotman ¶ 1, Ex. 1; Tingen Decl., Ex. A.)

On February 11, 2026, Plaintiffs provided MBUSA with the current registration and payoff information as required by the Agreement. (Decl. Rotman, Ex. 2.)

On Friday February 12, 2026 at 8:26 p.m., Plaintiffs’ Counsel provided Defense Counsel with the W-9 required to make the settlement payment. (Tingen Decl., Ex. C.)

Plaintiffs argue that the 998 Offer indicates that regardless of the surrender scheduling, Defendant was required to pay the settlement funds to Plaintiffs’ counsel no later than March 13, 2026 – 30 days after Plaintiffs’ provided the payoff information. (Decl. Rotman, Ex. 1, ¶ 5.)

Defendant sent payment on Monday, March 16, 2026 via overnight mail. (Tingen Decl., ¶¶4-5.)

Plaintiffs’ counsel did not receive the settlement funds until March 17, 2026. (Decl. Rotman, ¶ 9.)

Defendant argues that it could not make payment without the W-9, which was provided on February 12 after hours.

Defendant reasons that the 30-day period should start to run on February 13, 2026, the business day that it received the W-9 information. The Agreement says that payment is to be made within 30 days of receipt of the payoff amounts “unless circumstances caused

by Plaintiff result in delay or pursuant to an agreement of counsel.” Defendant reasons that not providing a W-9 was a delay caused by Plaintiffs.

The Court disagrees.

Plaintiffs provided the W-9 within a reasonable time. The Agreement does not provide that the 30-day period starts when the W-9 information is provided. Rather, the Agreement plainly says that the 30 days starts from receipt of the payoff information. The W-9 is distinct from the “payoff information”. “Payoff information” is not defined; but the parties do not appear to dispute that it was provided on February 11, 2026. (See e.g. Tingen Decl., ¶¶5, 8.)

The specific clauses at issue are as follows:

Plaintiffs will provide the payoff information for the subject vehicle (with the full account number) or copy of the title and current registration upon receipt of the fully executed offer by Defendant...

MBUSA shall send payment of both the Settlement Funds via overnight mail to Plaintiffs’ counsel Wirtz Law APC and the payoff amount directly to the financial institution lienholder/titleholder within three (3) days after the surrender of the subject vehicle....

Regardless of the surrender scheduling, MBUSA shall send payment of the Settlement Funds, less any payoff which MBUSA will pay directly to the lienholder (if applicable) within 30 days, unless circumstances caused by Plaintiff result in delay or pursuant to an agreement of counsel.

If MBUSA does not timely perform pursuant to the terms set forth herein, Plaintiffs shall be entitled to interest at the rate of 10% per annum, from the date of acceptance of this offer until the date Settlement Funds are received by Plaintiffs’ attorneys.

(Rotman, Ex. 1; Tingen Decl., Ex. A, ¶¶2-6, emphasis added.)

Thus, Defendant was obligated to overnight payment to Plaintiffs’ Counsel within 30 days from February 11, 2026 – or by Friday March 13, 2026.

Defense Counsel did not send payment until March 16, 2026 and it was not received until March 17, 2026.

		The consequence of the late payment that Defendant owes interest per the parties' Agreement. The Agreement says that the rate of 10% interest shall be paid from the acceptance date, which was February 5, 2026, to the date of <i>receipt</i> of payment, which was March 17, 2026, at the rate of 10%. This amounts to \$24.66 per day for 41 days = \$1,011.60. Plaintiffs are ordered to prepare a proposed judgment for the Court's signature based on this Order and the 998 Agreement. Plaintiffs are ordered to serve notice.
6	Murphy vs Ontario Health Education Company Inc. 2026-01550707	Motion to Compel Arbitration Case Management Conference Off calendar. PAGA case has been transferred to the Complex Department CX105.
7	Prato Properties LLC vs. Lee & Associates Commercial Real Estate Services, Inc. - Irvine, a California Corporation 2021-01234131	Motion for Reconsideration Defendant Thomas Gioia's Motion for Reconsideration is denied. Defendant Gioia moves for reconsideration of the minute order issued March 13, 2026 (ROA 343). When an application for an order has been "refused in whole or in part," a party seeking reconsideration under subsection (a), can make an application to "modify, amend, or revoke the prior order." The application must be made "to the same judge or court" within "10 days after service upon the party of written notice of entry of the order." The application must be "based upon new or different facts, circumstances, or law." Additionally, the application must be accompanied by an affidavit, stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc. § 1008, subd. (a).) Here, Defendant Gioia submits a supporting declaration from his counsel, wherein his counsel (Thomas Aplin) states: There was no evidence in the record that I knew before trial that Mr. McFarlin had been suspended by the State Bar. The Court of